



British Railways Act 1975

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1977.

ELIZABETH II



1975 CHAPTER i

An Act to empower the British Railways Board and the Greater Manchester Passenger Transport Executive to construct works and to acquire lands; to extend the time for the compulsory purchase of certain lands; to confer further powers on the Board, the Executive, Cleveland Potash Limited and the National Coal Board; and for other purposes.

[13th March 1975]

WHEREAS by the Transport Act 1962 the British Railways Board (hereinafter referred to as "the Board") were established:

And whereas it is the duty of the Board under the Transport Act 1962 (inter alia) to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to the Board to be expedient, and to have due regard, as respects all those railway and other services and facilities, to efficiency, economy and safety of operation:

1968 c. 73.

And whereas it is the general duty of the Greater Manchester Passenger Transport Executive (hereinafter referred to as "the Executive") under the Transport Act 1968 so to exercise and perform their functions under Part II of that Act and section 24 (2) thereof with respect to the provision of passenger transport services as to secure or promote the provision of a properly integrated and efficient system of public passenger transport to meet the needs of their area, comprising the cities of Manchester and Salford, the county boroughs of Bolton, Bury, Oldham, Rochdale and Stockport and parts of the administrative counties of the county palatine of Chester, Derby, the county palatine of Lancaster and the West Riding of Yorkshire; the said area with the exception of part of the urban district of Turton, part of the urban district of Ramsbottom, the urban district of Whitworth, the rural district of Tintwistle, the borough of Glossop, the rural district of Disley, the parish of Poynton with Worth in the rural district of Macclesfield, the urban district of Wilmslow and the urban district of Alderley Edge but with the addition of the county borough of Wigan, the urban district of Abram, the urban district of Aspull, the urban district of Hindley, the urban district of Ince in Makerfield, the urban district of Orrell, the urban district of Standish with Langtree, part of the urban district of Ashton in Makerfield, part of the urban district of Golbourne, part of the urban district of Billinge and Winstanley, the urban district of Blackrod and the parishes of Haigh Shevington and Worthington in the rural district of Wigan is comprised within the metropolitan county of Greater Manchester under the Local Government Act 1972 which in accordance with that Act is the passenger transport area of the Executive:

1972 c. 70.

And whereas it is expedient that the Board and the Executive should be empowered as in this Act provided to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the period now limited for the compulsory acquisition of certain lands should be extended as provided by this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board, the Executive, Cleveland Potash Limited and the National Coal Board as therein provided, and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited in the

office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerks of the county councils of the several counties and the town clerks of the several county boroughs (now the proper officers of the counties and districts) within which the said works will be constructed or the said lands are situated, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

1. This Act may be cited as the British Railways Act 1975. Short title.
2. This Act is divided into Parts as follows:— Division of
Act into Parts.
 - Part I.—Preliminary.
 - Part II.—Works.
 - Part III.—Lands.
 - Part IV.—Manchester works.
 - Part V.—Protective provisions.
 - Part VI.—Miscellaneous.
- 3.—(1) In this Act, unless there be something in the subject or Interpretation. context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—

“ the Act of 1845 ” means the Railways Clauses Consolidation Act 1845;	1845 c. 20.
“ the Act of 1863 ” means the Railways Clauses Act 1863;	1863 c. 92.
“ the Act of 1963 ” means the British Railways Act 1963;	1963 c. xviii.
“ the Act of 1966 ” means the British Railways Act 1966;	1966 c. xvii.
“ the Act of 1967 ” means the British Railways Act 1967;	1967 c. xxx.
“ the Act of 1968 ” means the British Railways Act 1968;	1968 c. xxxiv.
“ the Act of 1969 ” means the British Railways Act 1969;	1969 c. xliii.
“ the Act of 1970 ” means the British Railways Act 1970;	1970 c. lxxv.
“ the Act of 1971 ” means the British Railways Act 1971;	1971 c. xlv.
“ the Act of 1972 ” means the British Railways Act 1972;	1972 c. xxxv.
“ the Board ” means the British Railways Board;	

PART I
cont.

“ the works ” means Works Nos. 4 and 5 and any works, apparatus or conveniences constructed or provided by the Board as part of, or in connection with, or for the purposes of, those works or any of them;

“ enactment ” means any enactment, whether public general or local and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ the limits of deviation ” means the limits of deviation shown on the deposited plans;

1878 c. 76.

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

“ the tribunal ” means the Lands Tribunal.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works, powers or lands shall be construed as if the words “ or thereabouts ” were inserted after each such distance and length and distances between points on a railway shall be taken to be measured along the railway.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

Incorporation
of general
Acts.

4. The following Act and Parts of an Act, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act (other than Part IV), and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

The Act of 1845, except sections 7, 8, 9, 17, 19, 20, 22 and 23 thereof, and Part I (relating to the construction of a railway), except sections 13, 14, 18 and 19 thereof, and Part II (relating to extension of time) of the Act of 1863:

Provided that—

(i) for the purposes of the provisions of the Act of 1845 and the Act of 1863, as incorporated with this Act, the expression “ the company ” where used in the said incorporated provisions means the Board;

(ii) for the purposes of sections 16 and 30 to 44 of the Act of 1845, as incorporated with this Act, Work No. 5 shall be deemed to be a railway authorised by the special Act;

(iii) the provisions of sections 18 and 21 of the Act of 1845, as incorporated with this Act, shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

(a) by the provisions of Part II of the Public Utilities Street Works Act 1950; 1950 c. 39.

(b) by the provisions of section 33 (For protection of gas, water and electricity undertakers) of the Act of 1963, as incorporated with this Act; or

(c) by the provisions of section 45 (For further protection of gas, water and electricity undertakers) of the Act of 1967, as incorporated with this Act;

(iv) the provisions of section 46 of the Act of 1845, as incorporated with this Act, shall have effect subject to the provisions of sections 116 and 117 of the Transport Act 1968 as if any bridge to which the said section 46 applies and which carries a highway were in existence immediately before the appointed day referred to in the said section 116. 1968 c. 73.

5.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4, 24 (5) and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946. Application of Part I of Compulsory Purchase Act 1965. 1965 c. 56. 1946 c. 49.

(2) In section 11 (1) of the Compulsory Purchase Act 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than fourteen days' notice), as so applied, for the words "fourteen days" there shall be substituted the words "three months".

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act. 1845 c. 18.

PART II

WORKS

Power to
Board to
make works.

6.—(1) Subject to the provisions of this Act, the Board may, in the lines or situations and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In the county of Greater Manchester—

In the district of Bury (formerly the county borough of Bury)—

(Railway at
Bury.)

Work No. 4 A railway (522 metres in length) commencing by a junction with the disused Bury loop railway at a point immediately below the east side of the bridge carrying Manchester Road over the said railway, crossing on the level the Manchester and Leeds railway by not more than four lines of rails and terminating at a point 12 metres south-west of the junction of Market Street with Moss Street.

In the county of South Yorkshire—

In the district of Doncaster (formerly the urban district of Bentley-with-Arksey in the West Riding of the county of York)—

(New bridge
and road at
Bentley.)

Work No. 5 A new road commencing at a point 15 metres south of the junction of Hunt Lane and Yarborough Terrace and terminating by a junction with Ings Road at a point 140 metres north-east of the level crossing carrying Ings Road over the railway from Doncaster to Selby and including a bridge over the railways from Doncaster to Leeds and from Doncaster to Selby.

(2) The road comprised in Work No. 5 shall, when completed, vest in, and be maintained and repaired by, and at the expense of, the highway authority.

Further works
and powers.

7.—(1) Subject to the provisions of this Act (and, in so far as the same are shown on the deposited plans and sections, in the lines or situations and according to the levels as shown) the Board may exercise the powers hereinafter mentioned, that is to say:—

(a) In the county of South Yorkshire—

In the district of Doncaster (formerly the urban district of Bentley-with-Arksey in the county of the West Riding of York)—

stop up and discontinue the portion of Ings Road lying between the points marked “A” and “B” on the deposited plans:

Provided that such stopping up shall not take place until the new road and bridge, Work No. 5, have been constructed and opened for public use;

(b) In the county of Cambridgeshire—

In the district of Peterborough (formerly the borough of Peterborough in the county of Huntingdon and Peterborough)—

stop up and discontinue so much of Marholm Road which is crossed by the railway between Peterborough and Grantham at the level crossing known as Walton (Marholm Road) crossing as lies within the boundaries of their property.

(2) The stopping up under this section of the portion of Marholm Road in the district of Peterborough shall not take place until a ramped pedestrian footbridge to connect the severed portions of Marholm Road has been constructed and opened for public use.

8.—(1) In this section—

As to level
crossing at
Aylsham.

“the council” means the Norfolk County Council;

“the new highway” means the new Aylsham by-pass road (A.140) proposed to be constructed by the council;

“the railway” means the railway between Reepham (Goods) and Wroxham stations;

“traffic sign” has the meaning assigned to it by section 54 of the Road Traffic Regulation Act 1967.

1967 c. 76.

(2) The council and the Board may enter into and carry into effect agreements for the construction of a level crossing for carrying the railway with not more than four lines of rails across the new highway on the level.

(3) The Board may, with the consent in writing of the Secretary of State (which consent the Secretary of State may amend or revoke) and subject to such requirements as the Secretary of State may from time to time lay down, provide at or near the level crossing constructed under the powers of this section and maintain and operate so long as the consent continues in force such lights, traffic signs and automatic or other devices and appliances as may be specified by the Secretary of State.

(4) So long as such consent as aforesaid continues in force the provisions (in so far as they are inconsistent with any such consent) of the Highway (Railway Crossings) Act 1839, of 1839 c. 45, section 47 of the Act of 1845 and of section 6 of the Act of 1863 shall not apply to the said level crossing.

(5) Any traffic sign provided in pursuance of any such consent as aforesaid shall be deemed to be a traffic sign placed on or near a road in accordance with the Road Traffic Regulation Act 1967.

PART II
—cont.

(6) The Board may enter into and carry into effect agreements with the council with reference to the defraying or making of contributions towards the cost of constructing, maintaining and renewing the level crossing constructed under the powers of this section and with regard to any other matters relating thereto.

(7) Any expenses incurred by the council for the purposes of this section shall be deemed to be expenses incurred by them in the exercise of their powers as a highway authority.

(8) Section 9 (As to certain level crossings) of this Act shall apply to the level crossing in the district of Broadland (formerly the parish of Aylsham in the rural district of St. Faiths and Aylsham) known as Greenwood crossing whereby the link road between the B.1354 road from Aylsham to Coltishall and the unclassified county road from Aylsham to Swanton Abbot is crossed by the railway as though Greenwood crossing were included in Part II of Schedule 1 to this Act but without the reservation of a right for all persons to use the crossing on foot and as if the references in the said section 9 to the passing of this Act were references to the opening for public use of the level crossing referred to in subsection (2) of this section.

As to certain
level crossings.

9.—(1) As from the passing of this Act, all rights of way over the level crossings referred to in Part I of Schedule 1 to this Act, other than a right for all persons to use those level crossings as a bridleway or on foot, shall be extinguished, and the Board shall provide and maintain on both sides of the railway at each of the said level crossings gates for the convenience of persons on horseback or leading horses and persons on foot.

(2) As from the passing of this Act, all rights of way over the level crossings referred to in Part II of the said schedule, other than a right for all persons to use those level crossings on foot, shall be extinguished, and the Board shall provide and maintain on both sides of the railway at each of the said level crossings wicket gates or stiles for the convenience of persons on foot.

1839 c. 45.
1842 c. 55.

(3) The provisions of the Highway (Railway Crossings) Act 1839, of section 9 of the Railway Regulation Act 1842, of section 47 of the Act of 1845 and of sections 5, 6 and 7 of the Act of 1863 and any other provisions to the same or similar effect incorporated with or contained in any enactment relating to any of the level crossings referred to in the said schedule shall cease to apply to those level crossings.

(4) As from the passing of this Act, each of the level crossings referred to in the said schedule (including the gates thereof, other than the gates provided in pursuance of subsections (1) and (2) of this section) shall be deemed to be works provided by the

Board at the passing of this Act pursuant to section 68 of the Act of 1845 for the accommodation of the owners and occupiers of the lands adjoining the railway, and, for the purposes of this subsection, such owners and occupiers shall be deemed to include the owners and occupiers of any lands the use of which would have been interrupted if such level crossings had been closed at the passing of this Act.

(5) If any part of the road crossed by the railway at any of the level crossings referred to in the said schedule shall in consequence of the provisions of this section cease to be a road over which the public have a right of way for the passage of vehicles, the owners and occupiers of the lands abutting on such part shall be deemed to have such rights of passage thereover as shall be necessary to enable them to pass and repass to and from the said lands from and to such level crossing.

(6) The vehicular gates at the level crossing in the district of Gateshead (formerly the urban district of Ryton in the county of Durham) known as Peth Lane crossing may be kept permanently closed to road traffic between 22.00 hours and 06.00 hours, but at all other times the Board shall employ proper persons to open and shut the gates.

(7) Any person who suffers loss by the extinguishment under this section of such private rights of way (if any) as may exist over the level crossings referred to in the said schedule shall be entitled to be paid by the Board compensation to be determined in case of dispute by the tribunal.

10.—(1) The Board may use for the discharge of any water pumped or found by them during the construction of the works any available stream or watercourse, or any sewer or drain of any water authority or local authority in or through whose area the works may be constructed or pass, and for that purpose may lay down, take up and alter conduits, pipes and other works and may make any convenient connections with any such stream, watercourse, sewer or drain within the limits of deviation:

Use of
sewers, etc.,
for removing
water.

Provided that—

- (a) the Board shall not discharge any water into any sewer or drain vested in or under the control of a water authority or local authority except with the consent of the water authority or local authority and subject to such terms and conditions as the water authority or local authority may reasonably impose; and
- (b) the Board shall not make any opening into any such sewer or drain save in accordance with plans reasonably approved by, and under the superintendence (if given) of, the water authority or local authority in whom the sewer or drain shall be vested.

PART II
—cont.
1951 c. 64.

(2) (a) Notwithstanding anything in section 11 (7) of the Rivers (Prevention of Pollution) Act 1951, the discharge of any water under the powers of this section into any stream as defined in that section shall be subject to the provisions of section 2 of that Act:

1974 c. 40.

Provided that on the coming into force of section 31 of the Control of Pollution Act 1974 this paragraph shall have effect as if for the references to section 2 and section 11 (7) of the said Act of 1951 and any stream as defined in the said section 11 there were substituted respectively references to section 31, paragraph (b) (ii) of subsection (2) of section 31 and any stream as defined in section 56 of the said Act of 1974.

1930 c. 44.

(b) In the exercise of their powers under this section the Board shall not damage or interfere with the bed of any watercourse forming part of the main river of a water authority or the banks thereof within the meaning of section 81 of the Land Drainage Act 1930 or forming part of a metropolitan watercourse as defined in paragraph 15 (1) of Schedule 14 to the London Government Act 1963.

1963 c. 33.

(3) The Board shall take all such steps as may reasonably be required to secure that any water discharged by them under the powers of this section shall be as free as may be reasonably practicable from any gravel, soil or other solid substance or matter in suspension.

(4) Any difference arising between the Board and a water authority or local authority (as the case may be) under this section shall be settled by arbitration.

(5) In this section the expression “local authority” means a county council, the Greater London Council, a district council, a London borough council or the Common Council of the City of London.

Incorporation
of provisions
of Acts of
1963, 1967
and 1968
relating to
works.

11. Subject to the provisions of this Act the following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 5 (Power to deviate);

Section 7 (Repair of roads where level not permanently altered);

Section 11 (Stopping up roads and footpaths without providing substitute);

Section 12 (Stopping up roads and footpaths in case of diversion or substitution);

Section 13 (Provision as to repair of roads and footpaths);
and

PART II
—cont.

Section 14 (Power to make agreements with road
authorities).

The Act of 1967—

Section 12 (Temporary stoppage of roads and footpaths)
except subsections (5) and (6) thereof.

The Act of 1968—

Section 11 (Underpinning of houses near works):

Provided that—

- (i) the exercise by the Board of the powers of the said section 12 of the Act of 1967, as so incorporated, in relation to any road or footpath shall not prejudice or affect the right of the Post Office to maintain, inspect, repair, renew or remove telegraphic lines or break open that road or footpath for any of those purposes;
- (ii) the Board shall, so far as is reasonably practicable, so exercise the powers conferred by section 11 of the Act of 1968 as not to obstruct or render less convenient the access to any telegraphic line belonging to, or used by, the Post Office.

PART III

LANDS

12.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking. Power to acquire lands.

(2) Without prejudice to the generality of the powers conferred upon the Board by subsection (1) of this section, the Board may, subject to the provisions of this Act, enter upon, take and use for the purpose specified in column (3) of Schedule 2 to this Act all or any of the lands referred to in columns (1) and (2) of the said schedule.

(3) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes mentioned in subsection (1) of this section without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

PART III
—*cont.*

(4) The Board shall not under the powers of this section enter upon, take or use the lands delineated on the deposited plans and described in the deposited book of reference and therein numbered 1 to 21 in the district of Southend-on-Sea (formerly the county borough of Southend-on-Sea), 1 to 29 in the parish of Great Wakering and 1 in the parish of Foulness in the district of Rochford (formerly the rural district of Rochford) and 1 to 9 in the district of Castle Point (formerly the urban district of Canvey Island) all in the county of Essex.

Power to
acquire
easements
only in
certain cases.

1965 c. 56.

13.—(1) Notwithstanding anything in this Act the Board may acquire such easements or rights as they may require for the purpose of constructing, maintaining, renewing and using the works in, under or over any railway, tramway, tram-road, river, canal, navigation, watercourse, aqueduct, drain, dyke or sewer without being obliged to acquire any greater interest in, under or over the same respectively, and may give notice to treat in respect of such easements or rights, describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of Part I of the Compulsory Purchase Act 1965, as applied by this Act, shall have effect in relation to the acquisition of such easements or rights as if they were lands within the meaning of those provisions.

(2) (a) If, in any case where the Board acquire an easement or right in or under any of the said lands, they also require to take, use and pull down or open any cellar, vault, arch or other construction forming part of any such lands, they may enter upon, take and use such cellar, vault, arch or other construction for the purposes of the works and the provisions of the Compulsory Purchase Act 1965, as applied by this Act, shall extend and apply in relation to the purchase thereof as if such cellar, vault, arch or other construction were lands within the meaning of those provisions.

(b) Section 15 (Acquisition of part only of certain properties) of the Act of 1967, as incorporated with this Act, shall apply in respect of the acquisition by the Board under this subsection of any cellar, vault, arch or other construction as if the same were a part of land to which that section applies.

(3) Where the Board have acquired an easement or right under this section, the owner or occupier for the time being of the land affected shall, subject to the easement or right, have the same right to use the land as if this section had not been enacted.

Period for
compulsory
purchase of
lands and
easements.

14. The powers of the Board for the compulsory purchase of the lands and easements which they are authorised by this Act to acquire shall cease on 31st December, 1977.

15. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

PART III
—cont.

The Act of 1963—

Section 19 (Correction of errors in deposited plans and book of reference); and

Section 28 (As to cellars under streets not referenced).

The Act of 1967—

Section 15 (Acquisition of part only of certain properties); and

Section 16 (Grant of easements by persons under disability).

The Act of 1969—

Section 12 (Disregard of recent improvements and interests); and

Section 13 (Extinction of private rights of way).

Incorporation
of provisions
of Acts of
1963, 1967
and 1969
relating to
lands.

PART IV

MANCHESTER WORKS

16. In this Part of this Act, unless there be something in the Interpretation subject or context repugnant to such construction, the several for Part IV. words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—

“the Executive” means the Greater Manchester Passenger Transport Executive;

“the Executive’s work” means Work No. 6 and any works, apparatus or conveniences constructed or provided by the Executive as part of, or in connection with, or for the purposes of, that work;

“the Selnec Act” means the Selnec (Manchester Central Area Railway, &c.) Act 1972.

1972 c. xliv.

17. Subject to the provisions of this Part of this Act, the Power to Executive may, in the lines or situations and within the limits of Executive to deviation shown on the deposited plans and according to the make work. levels shown on the deposited sections, make and maintain the work hereinafter described with all necessary works and conveniences connected therewith:—

In the county of Greater Manchester—

In the district of Manchester (formerly the city of Manchester)—

Work No. 6 A railway (540 metres in length) being a deviation of a portion of Work No. 1 authorised by the Selnec Act commencing by a junction with that work at a point 419 metres from the commencement of that work and terminating by a junction with that work at a point 959 metres from its commencement.

PART IV
—*cont.*

Abandonment
of portion of
Work No. 1
of Selnec Act.

18.—(1) The Executive shall abandon the construction of so much of Work No. 1 authorised by the Selnec Act as lies between the commencement and termination of Work No. 6 (in this section and in section 19 (Work No. 6 to form part of Work No. 1 of Selnec Act) of this Act referred to as “the abandoned railway”) and is rendered unnecessary by the construction of Work No. 6.

(2) The abandonment under this section of the construction by the Executive of the abandoned railway shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Executive on such land for the purpose of surveying and taking levels or boring to ascertain the nature of the soil and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Executive to receive compensation for such temporary occupation or for any loss, damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Act of 1845 or the Selnec Act.

Work No. 6
to form part
of Work
No. 1 of
Selnec Act.

19. The Selnec Act shall have effect as if Work No. 6, instead of the abandoned railway, formed part of Work No. 1 authorised by the Selnec Act and the provisions of the Selnec Act shall apply accordingly to the Executive's work.

Power to
Executive to
acquire lands.

20.—(1) Subject to the provisions of this Part of this Act, the Executive may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purpose of the Executive's work.

(2) The provisions of the Selnec Act shall apply to any lands authorised to be acquired by the Executive under this Act as though the said lands had been authorised to be acquired by the Selnec Act.

PART V

PROTECTIVE PROVISIONS

Incorporation
of provisions
of Acts of
1963, 1967,
1970, 1971
and British
Railways
(Mersey
Railway
Extensions)
Act 1968.

21. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 33 (For protection of gas, water and electricity undertakers).

The Act of 1967—

Section 35 (Crown rights) (except paragraph (b) of subsection(1) and subsection(2) thereof); and

Section 45 (For further protection of certain gas, water and electricity undertakers).

The British Railways (Mersey Railway Extensions) Act 1968—
Section 19 (Saving rights of Duchy of Lancaster).

PART V
—cont.
1968 c. xxxv.

The Act of 1970—

Subsection (4) of section 6 (Stopping up of portions of roads).

The Act of 1971—

Section 27 (For protection of Post Office):

Provided that—

(i) in the said section 45 of the Act of 1967, as so incorporated—

(a) the reference in paragraph (2) thereof to section 11 (Underpinning of houses near works) of the Act of 1967 shall be construed as a reference to section 11 (Underpinning of houses near works) of the Act of 1968, as incorporated with this Act; and

(b) for the reference in paragraph (4) thereof to section 13 (Incorporation of provisions of Act of 1963 relating to works) of the Act of 1967 there shall be substituted a reference to section 11 (Incorporation of provisions of Acts of 1963, 1967 and 1968 relating to works) of this Act;

(ii) in subsection (4) of the said section 6 of the Act of 1970, as so incorporated, the reference to subsection (1) of section 6 shall be construed as a reference to paragraph (b) of subsection (1) of section 7 (Further works and powers) of this Act;

(iii) in the said section 27 of the Act of 1971, as so incorporated, for the references to Works Nos. 1, 2, 3 and 4 there shall be substituted references to Work No. 4.

22. For the protection of the Post Office the following provisions shall, unless otherwise agreed in writing between the Board and the Post Office, apply and have effect in relation to the bridge forming part of Work No. 5 (in this section referred to as “the bridge”):—

For protection
of Post
Office.

(1) The Board shall in the construction of the bridge provide therein for the telegraphic lines of the Post Office accommodation as specified in paragraph (2) of this section:

(2) The accommodation to be provided in the bridge in pursuance of the foregoing paragraph shall be for a steel pipe having an external diameter of not more than thirteen centimetres and shall be of such dimensions as may be agreed between the Post Office and the Board:

PART V
—cont.

- (3) The said accommodation shall be provided in accordance with plans, sections and particulars to be previously submitted to and reasonably approved by the Post Office:

Provided that, if within one month of the receipt of the said plans, sections and particulars the Post Office has not intimated its disapproval thereof or made any requirement with respect thereto, it shall be deemed to have approved the same:

- (4) The additional cost (if any) reasonably incurred by the Board in providing the said accommodation shall be repaid to the Board by the Post Office in a single payment or in such other manner as may be agreed between the Board and the Post Office:
- (5) The Post Office shall, before the Board complete the construction of the bridge, lay down all such ducting and cable supports as may be required in the said accommodation:
- (6) The work to be done by the Post Office under paragraph (5) of this section shall be completed as soon as reasonably practicable after the receipt by the Post Office of a notice from the Board that the said accommodation is ready:
- (7) The Post Office shall conform with the reasonable requirements of the Board as to the time or times at which and the manner in which the Post Office is to carry out the work under paragraph (5) of this section and the Board shall be entitled to superintend such work. The costs reasonably incurred by the Board in such superintendence shall be paid to the Board by the Post Office:
- (8) Any questions which may arise between the Post Office and the Board under this section shall be determined by arbitration.

For
protection
of South
Yorkshire
County
Council.

23. For the protection of the South Yorkshire County Council (in this section referred to as "the highway authority") the following provisions shall, unless otherwise agreed in writing between the Board and the highway authority, apply and have effect:—

- (1) In this section "the works" means Work No. 5 and any work connected therewith;
- (2) Not less than twenty-eight days before commencing to construct the works the Board shall submit to the highway authority for their reasonable approval plans, sections, specifications and particulars of the works showing the manner of the construction thereof;

- (3) If the highway authority do not within twenty-eight days after the submission to them of any such plans, sections, specifications and particulars intimate in writing to the Board any objection thereto or make any requirement with reference thereto they shall be deemed to have approved thereof;
- (4) The Board shall not construct the works otherwise than in accordance with such plans, sections, specifications and particulars as may be so approved or, if such approval be refused, as may be settled by arbitration and the works shall be constructed under the superintendence of the surveyor of the highway authority (if after reasonable notice from the Board he shall choose to attend) and to his reasonable satisfaction;
- (5) Any difference arising between the Board and the highway authority under this section (other than a difference as to the construction of this section) shall be settled by arbitration.

PART VI

MISCELLANEOUS

24. In its application to the Board and British Transport Hotels Limited pursuant to the provisions of Part III of Schedule 2 to the Transport Act 1962, subsection (3) of section 54 (Powers of police as to search and arrest) of the British Transport Commission Act 1949, as amended by section 21 (Powers of police as to search and arrest) of the Act of 1969, shall have effect as if the words “first day of January one thousand nine hundred and seventy-seven” were substituted for the words “first day of August one thousand nine hundred and seventy-four”.

Powers of
search and
arrest.
1962 c. 46.
1949 c. xxix.

25.—(1) As from the passing of this Act, all the powers and obligations of the Board in respect of the railways described in subsection (2) of this section shall be transferred to, and become the powers and obligations of, Cleveland Potash Limited and Cleveland Potash Limited may maintain, alter, replace or relay the said railways.

As to part of
former
Saltburn to
Whitby
railway, etc.

(2) The railways referred to in subsection (1) of this section are situated in the district of Langbaugh in the county of Cleveland (formerly partly the urban district of Loftus and partly the urban district of Skelton and Brotton in the North Riding of the county of York)—

- (a) such part of the former Saltburn to Whitby line of railway as lies between a point immediately south of the bridge carrying Front Street, Skinningrove, over such railway and the point where Boulby Gill crosses such railway east of Boulby Lane;

PART VI
—cont.

- (b) such part of the railway known as Skinningrove Zig Zag as lies to the south of the said bridge carrying Front Street over such railway and extending for a distance of 880 metres from the said bridge; and
- (c) such part of the railway known as Skinningrove Zig Zag as lies to the south of Mill Bank, Skinningrove, and extends for a distance of 300 metres to its junction with the railway secondly hereinbefore described.

1900 c. 27.
1933 c. 53.

(3) As respects the powers and obligations transferred by subsection (1) of this section Cleveland Potash Limited and any successor of theirs shall be treated as a railway company for the purposes of the enactments relating to the regulation of railways, the Railway Employment (Prevention of Accidents) Act 1900 and sections 41 to 43 of the Road and Rail Traffic Act 1933 and any orders made under any of them and a proposal by Cleveland Potash Limited or any successor of theirs to carry fare-paying passengers shall be regarded as a proposal to open a railway for the public conveyance of passengers for the purposes of the said section 41 of the Road and Rail Traffic Act 1933.

As to Vale of
Neath closed
branch line.

26.—(1) As from the passing of this Act all the powers and obligations of the Board in respect of the railway described in subsection (2) of this section shall be transferred to, and become the powers and obligations of, the National Coal Board.

(2) The railway referred to in subsection (1) of this section is so much of the Vale of Neath closed branch railway in the county of Mid-Glamorgan as lies between Cwmbach Halt and Mountain Ash (Cardiff Road) Station.

(3) As respects the powers and obligations transferred by subsection (1) of this section the National Coal Board and any successor of theirs shall be treated as a railway company for the purposes of the enactments relating to the regulation of railways, the Railway Employment (Prevention of Accidents) Act 1900 and sections 41 to 43 of the Road and Rail Traffic Act 1933 and any orders made under any of them and a proposal by the National Coal Board or any successor of theirs to carry fare-paying passengers shall be regarded as a proposal to open a railway for the public conveyance of passengers for the purposes of the said section 41 of the Road and Rail Traffic Act 1933.

Repeal.

27. The enactment specified in Schedule 3 to this Act is hereby repealed to the extent mentioned in the third column of that schedule.

Extension
of time.

28.—(1) The period now limited by the Act of 1971 and the Act of 1972 for the compulsory acquisition of the lands referred to in Schedule 4 to this Act is hereby extended until 31st December, 1977.

(2) In this section and in the said schedule the word "lands" includes any easements or rights in, under or over land authorised to be acquired by the Act of 1971 and the Act of 1972.

PART VI
—cont.

29.—(1) In this section—

"the enabling Act" means the Act of 1971 or the Act of 1972;

"the land" means any land which is for the time being authorised to be acquired compulsorily by the enabling Act not being land referred to in subsection (4) of this section;

"lessee" means a lessee under a lease having a period of not less than twenty-one years to run at the date of his notice under subsection (2) of this section.

Powers to
owners and
lessees to
give notice as
to purchase
of land.

(2) If any owner or lessee of any of the land shall give notice in writing to the Board of his desire for the acquisition as soon as may be by the Board of his interest in any part of the land specified in the notice, the Board shall within a period of three months after the receipt of such notice—

(a) enter into a contract with him for the acquisition of his interest in the land or such part thereof as may be specified in the contract; or

(b) serve on him a notice to treat for the compulsory acquisition of his interest in the land specified in his notice, or in such part thereof as may be required by the Board; or

(c) serve on him notice in writing of the Board's intention not to proceed with the purchase of his interest in the land specified in his notice.

(3) Where notice is given under the last foregoing subsection by an owner or lessee of land specified in the notice, then—

(a) if the Board—

(i) fail to comply with that subsection; or

(ii) withdraw in pursuance of any statutory provision a notice to treat served on him in compliance with paragraph (b) of that subsection; or

(iii) serve notice on him in compliance with paragraph (c) of that subsection;

the powers conferred by the enabling Act for the compulsory purchase of his interest in the land so specified shall cease;

(b) if his interest in part only of the land so specified is acquired in pursuance of such a notice to treat the powers conferred by the enabling Act for the compulsory purchase of his interest in the remainder of the land so specified shall cease.

PART VI
—*cont.*

(4) This section shall not apply to land which the Board are by the enabling Act authorised to acquire for the purposes of a work which is shown on the sections deposited in respect of the Bill for the enabling Act as intended to be constructed under the surface of such land.

Saving for
Town and
Country
Planning
Acts 1971
and 1972.
1971 c. 78.

30.—(1) Section 289 of the Town and Country Planning Act 1971 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the Session 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that session; and accordingly the Town and Country Planning Acts 1971 and 1972 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

(2) In their application to development authorised by this Act, article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1973 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Act were limited to development begun within ten years after the passing of this Act.

(3) In this section the reference to article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1973 includes a reference to corresponding provisions of any general order superseding that order made under section 24 of the Town and Country Planning Act 1971 or any corresponding provision of an Act repealing that section.

Arbitration.
1965 c. 56.

31. Where under this Act any difference (other than a difference to which the provisions of the Compulsory Purchase Act 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Costs of Act.

32. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

Section 9.

THE LEVEL CROSSINGS REFERRED TO IN SECTION 9 (AS TO CERTAIN LEVEL CROSSINGS) OF THIS ACT

PART I

In the county of Surrey—

In the district of Guildford (formerly the parish of Shalford in the rural district of Guildford)—

The level crossing known as East Shalford crossing whereby East Shalford Lane is crossed by the railway between Shalford and Chilworth stations.

In the county of Lincolnshire—

In the district of South Kesteven (formerly the parish of Hougham in the rural district of West Kesteven in the county of Lincoln (Parts of Kesteven))—

The level crossing known as Frinkley Lane crossing whereby Frinkley Lane is crossed by the railway between Grantham and Newark stations.

PART II

In the county of Lincolnshire—

In the district of South Holland (formerly the parish of Whaplode in the rural district of East Elloe in the county of Lincoln (Parts of Holland))—

The level crossing known as Oxcroft Bank crossing whereby Oxcroft Bank is crossed by the railway between March and Spalding stations.

In the county of Tyne and Wear—

In the district of Gateshead (formerly the urban district of Ryton in the county of Durham)—

The level crossing known as Peth Lane crossing whereby Peth Lane is crossed by the railway between Blaydon and Wylam stations.

Section 12.

SCHEDULE 2

LANDS REFERRED TO IN SUBSECTION (2) OF SECTION 12 (POWER TO ACQUIRE LANDS) OF THIS ACT

Area (1)	No. on deposited plans (2)	Purpose for which the lands may be acquired or used (3)
In Greater Manchester— District of Bury (formerly the county borough of Bury)	11, 12	To provide a maintenance depot for railway rolling stock.

SCHEDULE 3

Section 27.

REPEAL

Chapter	Short title	Extent of repeal
1865 c. cclxix	London, Chatham, and Dover Railway (Various Powers) Act 1865	Section 14 (Provision for subway under Holland Street).

Section 28.

SCHEDULE 4

LAND FOR WHICH THE PERIOD OF COMPULSORY ACQUISITION IS EXTENDED
BY THIS ACT TO 31ST DECEMBER, 1977

(A) The lands authorised to be acquired by section 13 (Power to acquire lands) of the Act of 1968 and numbered on the plans deposited in respect of the Bill for the said Act—

- (1) 2 in the London borough of Greenwich; and
 - (2) 4 in the London borough of Bexley;
- all in Greater London.

(B) The lands authorised to be acquired by section 18 (Power to acquire lands) of the Act of 1971—

- (1) for the purpose of Work No. 6 authorised by Part II (Works) of the said Act;
- (2) numbered on the plans deposited in respect of the Bill for the said Act—

(a) 9 in the county borough of Birkenhead (now the district of Wirral in the county of Merseyside);

(b) 1 in the urban district of Caterham and Warlingham (now the district of Tandridge) in the county of Surrey;

(c) 1 in the parish of Crowhurst in the rural district of Godstone (now the district of Tandridge) in the county of Surrey;

(d) 1 in the parish of Uckfield in the rural district of Uckfield (now the district of Wealden) in the county of East Sussex.

(C) The lands authorised to be acquired by section 9 (Power to acquire lands) of the Act of 1972—

- (1) for the purposes of Work No. 1 authorised by Part II (Works) of the said Act;
- (2) numbered on the plans deposited in respect of the Bill for the said Act 3, 4, 5, 7, 9, 11 and 15 in the urban district of Basildon (now the district of Basildon) in the county of Essex.

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